

continues to participate in the litigation, applicants make a scant showing at best of ability to pay. The applicants should pursue more effective means of collecting a court order.

Note that the case is also set for a settlement conference this afternoon.

17. 9:00 AM CASE NUMBER: MSN21-0445

CASE NAME: SWIFT FINANCIAL VS BAY AREA PUBLIC SAFETY

***HEARING ON MOTION IN RE: AMEND JUDGMENT CCP 187 OR IN THE ALTERNATIVE TO AMEND THE JUDGMENT TO ADD NON-PARTY AUTHORITY PATROL, INC. AS AN ALTER EGO/SUCCESSOR
FILED BY: SWIFT FINANCIAL, LLC**

TENTATIVE RULING:

Plaintiff Swift Financial, LLC moves under CCP section 187 to amend the judgment to add Authority Patrol, Inc. as a judgment debtor, contending that Authority Patrol is the alter ego of defendant and judgment debtor Bay Area Public Safety, Inc. The motion was properly served on Authority Patrol, which has not filed any opposition. The motion is **granted**.

The authority provided to the courts by Code of Civil Procedure section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor. (*Dow Jones Co. v. Avenel* (1984) 151 Cal.App.3d 144, 148 [198 Cal. Rptr. 457].) In doing so, the court is amending the judgment to add the real judgment debtor. (*Id.* at p. 149.) To prevail in a motion to add judgment debtors, WSI must show that (1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone. (*Relentless, supra*, 222 Cal.App.4th at pp. 815–816.)

Triyar Hospitality Management, LLC v. WSI (II)-HWP, LLC (2020) 57 Cal.App.5th 636, 641.

Factors for the court to consider include identical equitable ownership, comingling of funds, use of the same offices, disregard of formalities, and use of one entity as a mere shell for the affairs of another. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc., supra*, 217 Cal.App.4th at pp. 1108–1109.) An important factor in determining alter ego liability is that a corporate entity is so undercapitalized that it is likely to have no sufficient assets to meet its debts. (*Automotriz etc. v. Resnick* (1957) 47 Cal.2d 792, 796–797 [306 P.2d 1].)

Butler America, LLC v. Aviation Assurance Co. (2020) 55 Cal.App.5th 136, 146.

The Court has reviewed the uncontested factual evidence presented with the motion, and it is satisfied that plaintiff has met its burden. For one example, plaintiff shows that, after the judgment here, the companies made a series of same-day payments from Bay Area Public Safety to the common owner of the two corporations, which were immediately redeposited to Authority Patrol. The remainder of plaintiff's proof is equally convincing.

Authority Patrol has presented no contrary evidence and has filed no opposition.

18. 9:00 AM CASE NUMBER: N26-0647

CASE NAME: CLAIM OF:DEANNA CLARK

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C22-01852

CASE NAME: MANSOUR BOROUMAND VS. MOJGAN SHAHBAZI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER ANSWER TO FORM INTERROGATORY 17.1**

FILED BY: BOROUMAND, MANSOUR

TENTATIVE RULING:

Plaintiff moves to compel responses to two requests for admission, and (if necessary) to form interrogatory 17.1. Defendants have withdrawn all objections to the RFAs except that they are compound, which they are not. The motion is therefore **granted**. Defendants must serve amended responses to RFAs 7 and 8 by September 1, 2026, with square admissions or denials and no objections. If there are any denials, defendants must also respond without objection to form interrogatory 17.1.

The Court awards sanctions of \$1,000, payable by defendants' counsel to plaintiff's counsel within 30 days.

20. 9:01 AM CASE NUMBER: C23-02910

CASE NAME: JESUS TORRES VS. JORODA, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS DOCUMENT REQUEST SET 1**

FILED BY: JORODA, INC.

TENTATIVE RULING:

Defendant moves to compel further responses and production on two document requests. The motion is **denied**.

The problem here is that these are, in substance, interrogatories or deposition questions miscast as document requests. A request for production of documents requires that documents in the responding party's possession be produced. It does not require that the responding party go out and get documents he does not have; nor does it require that he catalog and explain each document. If plaintiff has produced the responsive documents he has, he has complied.